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9 Attorneys for Plaintiffs
10 ADRIAN CHAVEZ; KARENTH CHAVEZ; and
11 ANDRES CHAVEZ, a minor by and through his
12 Guardian ad litem, Karenth Chavez

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**UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA**

ADRIAN CHAVEZ, an individual;
KARENTH CHAVEZ, an individual;
and ANDRES CHAVEZ, a minor by
and through his guardian ad litem,
Karenth Chavez,

Plaintiffs,

v.

UNITED STATES OF AMERICA;
JOHN SIK KIM, an individual; and
DOES 1 through 10 inclusive,

Defendants.

Case No.

COMPLAINT FOR DAMAGES

1. Negligence

DEMAND FOR JURY TRIAL

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PRELIMINARY STATEMENT

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2 1. Plaintiffs ADRIAN CHAVEZ; KARENTH CHAVEZ; AND ANDRES
3 CHAVEZ (hereinafter as “Plaintiffs”) bring this action against Defendant UNITED
4 STATES OF AMERICA (hereinafter as “USA”), JOHN SIK KIM, and DOES 1 through
5 10, inclusive (hereinafter as “Defendants”) under the Federal Tort Claims Act.

6 2. At all times mentioned, Defendant USA was and now is a duly organized
7 subsidiary, ancillary and/or department of Defendant USA doing business in the state of
8 California and other states.

9 3. At all times mentioned, JOHN SIK KIM (hereinafter as “KIM”) was an
10 employee of the United States Postal Service (hereinafter as “USPS”).

11 4. Plaintiff is ignorant of the true names and capacities of Defendants sued
12 herein as DOES 1 through 10, inclusive, and therefore sues these Defendants by such
13 fictitious names. Plaintiffs will amend this Complaint to allege their true names and
14 capacities when ascertained. Plaintiff are informed and believe, and thereon allege, that
15 each of the fictitiously named Defendants participated in or contributed to Plaintiffs
16 damages, either directly or vicariously.

17 5. Plaintiffs action is for personal injury as a result of a vehicle versus vehicle
18 incident caused by the negligent or wrongful act or omission of employee, KIM while
19 acting within the scope of his office or employment with USPS under circumstances
20 where the United States, if a private person, would be liable to the Plaintiff in accordance
21 with the laws of the State of California, the place where the accident occurred, under 28
22 U.S.C. § 1346(b).

23 6. Plaintiffs have exhausted their administrative claims, as Plaintiffs filed the
24 required claim forms with Defendant and Defendant failed to make a final disposition
25 within six (6) months, as set forth in 28 U.S.C. § 2675(a).

26 7. Plaintiffs allege on personal knowledge as to all facts known to them, and on
27 information and belief as to all other facts, as follows:
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JURISDICTION AND VENUE

8. This Court has jurisdiction over the subject matter of this court under 28 U.S.C. §§ 1331 and 1346(b).

9. On or about January 10, 2020 Plaintiffs filed a claim with USPS for the incident that occurred on October 25, 2019.

10. On April 22, 2020, Plaintiffs received acknowledgement from USPS that their claim was received, but must be supported by documentation of Plaintiffs medical records and itemized bills before the claims can be considered for adjudication.

11. On June 23, 2021, Plaintiffs submitted a new claim with USPS with the requested documentation.

12. Since June 23, 2021, Plaintiffs have not received any form of rejection from USPS.

13. Venue is properly within this district under 28 U.S.C. § 1402(b) as the act that is the subject of this complaint occurred within the County of Los Angeles, State of California.

PARTIES

14. Plaintiff ADRIAN CHAVEZ is, and at all relevant times mentioned herein was, a resident of the State of California, County of Los Angeles.

15. Plaintiff KARENTH CHAVEZ is, and at all relevant times mentioned herein was, a resident of the State of California, County of Los Angeles.

16. Plaintiff ANDRES CHAVEZ is, and at all relevant times mentioned herein was, a minor by and through his guardian ad litem, Karenth Chavez, and a resident of the State of California, County of Los Angeles.

17. Defendant USA is sued for Plaintiffs personal injuries caused by the negligent or wrongful acts or omissions of KIM acting within the scope of his office or employment of the United States Postal Service under circumstances where the United States, if a private person, would be liable to Plaintiff in accordance with the laws of the State of California. As such, the UNITED STATES and KIM are the appropriate

1 defendants under the Federal Tort Claims Act pursuant to the doctrine of *respondeat*
2 *superior*.

3 **FACTUAL ALLEGATIONS**

4 18. Plaintiffs re-allege and incorporate by reference all of the above allegations
5 as though set forth herein in full.

6 19. Plaintiffs are citizens of the United States of America.

7 20. On October 25, 2019, Plaintiff Adrian Chavez, was traveling westbound on
8 Florence Avenue (Between Broadway & Flower) in a 2018 Toyota Rav4 in Los Angeles,
9 California. Plaintiff Adrian Chavez approached a red light at the intersection and slowed
10 down prior to coming to a complete stop.

11 21. At the same time and place as aforementioned, Defendant KIM was driving
12 at an unsafe speed and rear-ended Plaintiff's vehicle, causing Plaintiff Adrian Chavez's
13 vehicle to collide with the vehicle in front of them.

14 22. At all times herein referenced, Plaintiffs Karenth Chavez and Andres Chavez
15 were passengers in Plaintiff Adrian Chavez's vehicle.

16 23. KIM, an employee of the United States Postal Service, acted in a negligent
17 manner in operating a United States Postal Service vehicle when rear-ending Plaintiffs,
18 and was under the course and scope of said employment.

19 24. As a result of this incident, Plaintiffs sustained severe personal injuries for
20 which they have incurred and will continue to incur medical expenses, loss of income,
21 pain and suffering, discomfort, inconvenience, emotional distress, disabilities and
22 restrictions on their normal daily activities, loss of quality and enjoyment of life's
23 pleasures, and any and such further damages as will be proven at the time of trial and
24 which the Court deems appropriate.

25 **FIRST CAUSE OF ACTION**

26 **NEGLIGENCE**

27 **(Against All Defendants)**

28 25. PLAINTIFFS re-allege and incorporate by references all of the above

1 allegations as though set forth herein in full.

2 26. KIM owned a duty to Plaintiffs and, as described above, breached his duty
3 to Plaintiffs and was the direct and proximate cause and a substantial factor in bringing
4 about Plaintiffs damages outlined below.

5 27. The actions of KIM constitute a tort of negligence under the laws of the State
6 of California.

7 28. KIM was acting within the scope of his office or employment by USPS, an
8 agency of Defendant USA.

9 29. As a result of the negligence of the Defendant, Plaintiffs have suffered
10 special and general damages.

11 30. Plaintiffs have sustained bodily injuries. As a result of their bodily injuries,
12 Plaintiffs has, and in the future will have, pain and suffering. They are therefore entitled
13 to general damages, in a sum to be proven.

14 31. As a result of their bodily injuries, Plaintiffs have incurred medical and
15 related expenses, and in the future will have medical and related expenses, the exact
16 amounts of which are not yet known.

17 32. As a result of their bodily injuries, Plaintiff Adrian Chavez and Plaintiff
18 Karenth Chavez have sustained, and in the future will sustain, loss of earnings and
19 impairment of earning capacity, the exact amounts of which are not yet known.

20 33. Plaintiff Adrian Chavez has sustained properly damage, in an amount to be
21 determined at trial.

22 34. Plaintiff Adrian Chavez is the lawful spouse of Plaintiff Karenth Chavez,
23 and as a direct and proximate result of the negligence of the defendants as aforesaid, this
24 Plaintiff has been deprived of the society, services and consortium of his spouse and has
25 sustained such other and further damages as will be demonstrated at time of trial for which
26 judgment is sought.

27 35. Plaintiff Karenth Chavez is the lawful spouse of Plaintiff Adrian Chavez,
28 and as a direct and proximate result of the negligence of the defendants as aforesaid, this

1 Plaintiff has been deprived of the society, services and consortium of her spouse and has
2 sustained such other and further damages as will be demonstrated at time of trial for which
3 judgment is sought.

4 36. As a result of the foregoing, Plaintiffs suffered, and continues to suffer from
5 physical and emotional pain, anguish, distress, and psychological injury.

6 **PRAYER**

7 WHEREFORE, Plaintiffs respectfully request judgment as follows:

8 37. For special damages for past and future medical expenses, past and future
9 wage loss, loss of earning capacity, loss of earning capacity, property damage, and loss
10 of consortium, in an amount according to proof;

11 38. For general damages in an amount according to proof;

12 39. For costs of suit; and

13 40. For such other and further relief that this honorable Court deems just and
14 proper in the interest of justice.

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17 Dated: January 4, 2022

18 By: 

19 H. Dean Aynechi, Esq.
20 Attorney for Plaintiff
21 ADRIAN CHAVEZ; KARENTH
22 CHAVEZ; and ANDRES CHAVEZ,
23 a minor by and through his Guardian
24 ad litem, Karenth Chavez
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DEMAND FOR JURY TRIAL

Plaintiff hereby demands a trial by jury

Dated: January 4, 2022

By: 

H. Dean Aynechi, Esq.
Attorney for Plaintiff,
ADRIAN CHAVEZ; KARENTH
CHAVEZ; and ANDRES CHAVEZ,
a minor by and through his Guardian
ad litem, Karenth Chavez